

are there any other issues that you have experienced that we have not discussed today?

A [By Plaintiff] I did -- as stated previously, I did have issues with the braking. As I said, me feeling it as a driver and hence why it initiated me to make some phone calls to the dealership and to the manufacturer directly to ask for assistance on next steps. But that was the main subject of my issue and concerns. The limited amount of braking that was available on my vehicle.

(Wasson decl., ex. 7, Torosian depo., p. 52:13-25.)

Defendant's evidence fails to meet its initial burden of persuasion and production to show, as a matter of law, that Plaintiff cannot prove that Defendant failed to make sufficient service literature and replacement parts available to its authorized repair facility to effect repairs within the warranty period. Therefore, the burden does not shift to Plaintiff to raise a triable issue of material fact on Issue 3.

Conclusion

When the moving party fails to make the initial showing, it is unnecessary to review the opposing party's evidence and the court must deny the motion. (*Aguilar, supra*, 25 Cal.4th at p. 849-850; *Hawkins v. Wilton* (2006) 144 Cal.App.4th 936, 940 [defendant's motion for summary judgment should have been denied without looking at opposing evidence because defendant failed to refute tenable pleaded theories].) Here, the burden here does not shift to Plaintiff to raise a triable issue of fact and the court may stop its analysis here. Therefore, the court denies Defendant's motion for summary judgment and the alternative motion for summary adjudication on the first, second, third, and fourth causes of action of the Complaint.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 6/23/2026.
(Judge's initials)

(47)

Tentative Ruling

Re: ***Daniel Oliver vs. Nikolay N. Kotenoff***
Superior Court Case No. 25CECG04793

Hearing Date: June 25, 2026 (Dept. 503)

Motion: Plaintiff, Daniel Oliver's Motion to Compel Responses to Form Interrogatories, Special Interrogatories, Requests for Production of Documents, and to Deem Admitted the Admissions in Request for Admissions from each Defendant, and for costs.

Tentative Ruling:

To deny plaintiff Daniel Oliver's motion to compel responses to: Form Interrogatories; Special Interrogatories; Requests for Production of Documents; and to deem admitted the admissions in Request for Admissions, from each defendant.

To grant monetary sanctions in the amount of \$650, to be paid by plaintiff Daniel Oliver, to defendants counsel at the Harris Law Firm, PC. Sanctions shall be paid within 30 days of the notice of entry of this order.

Explanation:

Plaintiff, Daniel Oliver, ("plaintiff" or "Oliver") makes this motion to compel discovery from defendants Vera Oliver ("Vera") and Nikolay N. Kotenkoff ("Kotenkoff") (collectively "defendants") to: Form Interrogatories; Special Interrogatories; Requests for Production of Documents; and to deem admitted the admissions in Request for Admissions from each defendant.

A plaintiff may not serve interrogatories, requests for production, or requests for admission until ten days after service of the summons on, or appearance by, the responding party. (Code Civ. Proc., §§ 2030.020, subd. (b), 2031.020 subd. (b), 2033.020 subd. (b).)

Vera was personally served with the Complaint on November 10, 2025. Oliver's claimed service of discovery on November 16, 2025 therefore occurred before the statutory period permitting discovery had elapsed. (James R. Proctor III ("Proctor") Decl., ¶¶ 2-3.)

Plaintiff also propounded discovery directed on Kotenkoff on November 16, 2025. Based on the court's docket and filings, Oliver attempted service of the summons and complaint on Kotenkoff, but the proof of service was rejected as defective by the Court. No valid proof of service establishing proper service on Kotenkoff appears in the record. (Proctor Decl., ¶6.) Because the discovery was served before Kotenkoff was subject to discovery under the Civil Discovery Act, no obligation to respond ever arose, and Oliver

cannot establish waiver, compel responses, or obtain sanctions based upon that defective service. (*Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808-809.)

Because of these procedural defects, the Court denies Oliver's motion to compel responses to: Form Interrogatories; Special Interrogatories; Requests for Production of Documents; and to deem admitted the admissions in Request for Admissions, from each defendant.

Defendants, in turn, request monetary sanctions against Oliver for misuse of the discovery process pursuant to Code of Civil Procedure section 2023.030, subdivision (a). Code of Civil Procedure section 2023.030, subdivision (a) provides, in relevant part: "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct."

Under these circumstances, the court orders monetary sanctions against Oliver for reasonable attorney fees in the amount of \$650 for defending against this motion. Defendants' counsel explained to Oliver that discovery had been premature. (Proctor Decl., ¶18.) Furthermore, self-representation is not a ground for lenient treatment and, as is the case with attorneys, a person who represents himself "must follow correct rules of procedure." *Nwosu v. Uba* (2004) 122 Cal. App.4th 1229, 1247.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 6//23/2026.
(Judge's initials) (Date)